EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

DECISION

Application no. 62781/10
AŞILI DOĞAN and Others against Turkey
and 2 other applications
(see list appended)

The European Court of Human Rights (Second Section), sitting on 28 June 2016 as a Committee composed of:

Paul Lemmens, *President,*
Ksenija Turković,
Jon Fridrik Kjølbro, *judges,*

and Hasan Bakırcı, *Deputy Section Registrar,*

Having regard to the above applications lodged on 8 October 2010,

Having regard to the formal declarations accepting a friendly settlement of the cases,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

A list of the applicants is set out in the appendix. They were all represented by Ms S. Karaduman, a lawyer practising in Ankara. The Turkish Government ("the Government") were represented by their Agent.

Relying on Articles 6, 11 and 13 of the Convention, the applicants complained that they had been given a disciplinary penalty for taking part in a demonstration and that there was no domestic remedy to challenge the impugned disciplinary measures.

On 6 October 2015 and 11 April 2016 the Court received friendly settlement declarations signed by the parties under which the applicants agreed to waive any further claims against Turkey in respect of the facts giving rise to these applications against an undertaking by the Government to pay *ex gratia* each of them 500 euros (EUR) to cover any pecuniary and non-pecuniary damage and EUR 500 for costs and expenses, which will be

converted into national currency of the respondent State at the rate applicable on the date of payment, and will be free of any taxes that may be applicable. It will be payable within three months from the date of notification of the decision taken by the Court. In the event of failure to pay this sum within the said three-month period, the Government undertook to pay simple interest on it, from the expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points. The payment will constitute the final resolution of the cases.

THE LAW

Given that the applications concern the same facts and complaints and raise identical issues under the Convention, the Court decides to join them, pursuant to Rule 42 § 1 of the Rules of the Court.

The Court takes note of the friendly settlement reached between the parties. It is satisfied that the settlement is based on respect for human rights as defined in the Convention and its Protocols and finds no reasons to justify a continued examination of the applications. In view of the above, it is appropriate to strike the cases out of the list.

For these reasons, the Court, unanimously,

Decides to join the applications*;*

Decides to strike the applications out of its list of cases in accordance with Article 39 of the Convention.

Done in English and notified in writing on 21 July 2016.

Hasan Bakırcı
Deputy Registrar

Paul Lemmens
President

APPENDIX

No	Application No	Lodged on	Applicant Date of birth Place of residence	Represented by
1.	62781/10	08/10/2010	**Filiz AŞILI DOĞAN** 19/09/1972 Ankara	Sevgi KARADUMAN
2.	62823/10	08/10/2010	**Cebrail ÇOBAN** 02/03/1967 Ankara	Sevgi KARADUMAN
3.	70647/10	08/10/2010	**Sema ERARSLAN** 15/11/1976 Ankara	Sevgi KARADUMAN